

TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: acarbajal@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court’s website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
August 13, 2026

#	Case Name	Tentative
1.	<u>30-2025-01464410-CU-PO-NJC</u> Chan vs. H Mart Irvine Northpark LLC	Before the Court is a Motion for Sanctions brought by Plaintiff Amy Chan (“Plaintiff”) against Defendants H Mart Inc. (“HM Inc.” and H Mart Companies, Inc. (“HM Co.”) (collectively, “Defendants”). ROA 69. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010, 2023.030, 2025.450, and 2025.480, imposing monetary, issue, and evidentiary sanctions upon Defendants for Defendants’ alleged discovery misuse. ROA 69, p.2. Plaintiff seeks the imposition of monetary discovery sanctions, pursuant to California Code of Civil Procedure Sections 2023.030, 2030.290(c), and 2031.300(c), in the amount of \$36,301.94, upon Defendants and their attorneys of record, jointly and severally. ROA 69, pp. 2-3.

		In addition to monetary sanctions, Plaintiff requests that the Court impose terminating sanctions by striking Defendants' Answer and entering default, or, alternatively, by striking Defendants' affirmative defenses. <i>Id</i> at p.3. As an alternative to terminating sanctions, and in addition to monetary sanctions, Plaintiff requests that the Court impose issue sanctions in the form of a jury instruction that Defendants have been adjudicated to have been 100% negligent in this matter and that their negligence caused Plaintiff's injuries; leaving only Plaintiff's past and future medical expenses and value of past and future pain and suffering to be adjudicated. <i>Id</i>. As a final alternative, and in addition to monetary sanctions, Plaintiff requests that the Court impose evidentiary sanctions by precluding Defendants from introducing any evidence as to liability and causation. <i>Id.</i> at p.17. Defendants request that the Court deny Plaintiff's Motion, or, alternatively, grant the parties additional time to meet and confer to address Plaintiff's concerns. ROA 79, p.3. The Court notes that Defendants filed an untimely opposition to Plaintiff's Motion on August 3, 2026. ROA 90; <i>see</i> Cal. Civ. Proc. Code § 1005(b) ("[a]ll papers opposing a motion . . . shall be filed with the court . . . at least nine court days, and all reply papers at least five court days before a hearing" unless a "court, or judge thereof" prescribes a shorter time.). While the Court elects not to consider Defendants' untimely filed papers, Defendants' timely filed Opposition (ROA 79) is duly considered. Cal. Rules of Ct., rule 3.1300(d) ("If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate."). I. Relevant Timeline of Events On March 5, 2026, Plaintiff served Defendants with Notice of Motion and Motion to Compel Depositions of Person/s Most Qualified ("PMQ") for HM Inc. and/or HM Co., and Request for Sanctions in the amount of \$10,575. ROA 40, pp.
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	2, 20. The Court promptly ordered the parties to attend an Informal Discovery Conference (“IDC”) facilitated by the Court to reach an informal resolution to the parties’ discovery dispute. ROA 45. The Court’s order set the IDC for April 8, 2026. <i>Id.</i> On March 16, 2026, the parties stipulated to continue the IDC until May 5, 2026. ROA 52. On May 5, 2026, the parties attended the IDC as ordered. ROA 59. Therein, the Court noted that Defendants’ PMQs were not qualified to testify on behalf of Defendants. <i>Id.</i> Accordingly, the Court ordered the depositions of Defendants’ PMQs to proceed by no later than July 5, 2026. <i>Id.</i> Additionally, the Court ordered Plaintiff’s Motion withdrawn as moot and that all future discovery related hearings be taken off calendar. <i>Id.</i> The Court did not issue sanctions. <i>Id.</i> On May 11, 2026, Plaintiff emailed Attorney Matthew Stein to identify mutually agreeable dates for the depositions to proceed consistent with said order. ROA 66, Exh. 3. Having received no reply from M. Stein, on June 8, 2026, Plaintiff served amended notices of Deposition of Defendants’ PMQs. ROA 66, pp. 55, 73. Plaintiff’s notice set the Deposition of HM Inc.’s PMQ to occur on June 30, 2026, and the deposition of HM Co.’s PMQ to occur on July 1, 2026. ROA 66, pp. 38, 56. On June 30, 2026, HM Inc. again produced a witness who was not qualified to discuss the topics provided in Plaintiff’s notice. ROA 66, pp. 3, 5; ROA 33, Exh. 5, pp 77-83. On July 1, 2026, HM Co. also produced a witness who was not qualified to discuss the topics provided in Plaintiff’s notice. ROA 66, pp. 3, 29; ROA 66, Exh. 6, pp. 131-136. II. Discretionary Sanctions for Misuse of the Discovery Process “California discovery law authorizes a range of penalties,
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	including monetary, issue, evidence, and terminating sanctions, for conduct amounting to ‘misuse of the discovery process.’” <i>Doppes v. Bentley Motors, Inc.</i>, 174 Cal. App. 4th 967, 991 (2009); Cal. Civ. Proc. Code §§ 2023.030(b)-(d), 2030.290(c), 2031.300(c). “The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. <i>Doppes, supra</i>, 174 Cal. App. 4th at 992 (citing <i>Reedy v. Bussell</i>, 148 Cal. App. 4th 1272, 1294 (2007). In choosing a sanction, “[t]he trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery.” <i>Doppes, supra</i>, 174 Cal. App. 4th at 992. Under California Code of Civil Procedure Section 2023.030, courts may impose terminating sanctions by way of striking all or parts of the pleadings, staying proceedings by the offending party until the court’s discovery orders are obeyed, dismissing all or part of the offender's action, or rendering a judgment by default against the offending party. Cal. Civ. Proc. Code § 2023.030(d). “The courts have long recognized that the terminating sanction is a drastic penalty and should be used sparingly.” <i>Lopez v. Watchtower Bible and Tract Soc’y of N.Y.</i>, 246 Cal. App. 4th 566, 604 (2016). Proportionality is critical when it comes to terminating sanctions because they altogether deny the non-compliant party a hearing on the merits and thus implicate due process. <i>Id.</i> To ensure proportionality, trial courts should generally take an “incremental” approach—that is, they should “attempt[] less severe alternative[] [sanctions]” <i>unless</i> the “record clearly shows lesser sanctions would be ineffective.” <i>Id.</i> at 604 (emphasis added). While a decision to order terminating sanctions should not be made lightly, “where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” <i>Mileikowsky v. Tenet Healthsystem</i>, 128 Cal. App. 4th 262, 279-280 (2005). Under this standard, trial
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		courts have properly imposed terminating sanctions when parties have willfully disobeyed even <i>just one</i> discovery order. See <i>Lang v. Hochman</i>, 77 Cal. App. 4th 1225, 1244 (2000) (citing <i>Collisson & Kaplan v. Hartunian</i>, 21 Cal. App. 4th 1611 (1994)). “Only two facts are absolutely prerequisite to imposition of the [nonmonetary] sanction: (i) there must be a failure to comply . . . and (ii) the failure must be willful.” <i>Calvert Fire Ins. Co. v. Cropper</i>, 141 Cal. App. 3d 901, 904 (1983). Willfulness in the context of nonmonetary sanctions means a “conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance” <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 787-788 (1978). “Lack of diligence may be deemed willful in the sense that the party understood his obligation, had the ability to comply, and failed to comply.” <i>Deyo, supra</i>, 84 Cal. App. 3d at p. 787. See <i>Housing Auth. v. Gomez</i>, 26 Cal. App. 3d 366, 372-73 (1972) (stating that a court may “justifiably conclude that [a party] ha[s] no intention of being deposed and would continue to engage in evasive tactics to achieve that end” where the party has already failed to appear for deposition and respond to discovery requests, including by disobeying a court order to do so). Here, as outlined <i>supra</i>, the Court issued a clear order for Defendants to produce PMQs who could competently testify to the issues noticed by Plaintiff. ROA 59. In good faith, the Court did not issue sanctions upon Defendants, despite Defendants’ previously having failed to produce qualified PMQs for Plaintiff’s properly noticed depositions. See ROA 32, ¶ 13. Despite the Court’s efforts to resolve the parties’ deposition disputes informally, Defendant <i>still</i> refused to comply. The Court is convinced that Defendants have no intention of being deposed and will exhaust all efforts, at the parties’ and the Court’s expense, to achieve that end. Accordingly, the Court finds that Defendant’s discovery misuse is willful and that monetary and nonmonetary sanctions are appropriate to prevent future and ongoing abuses.
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	III. Assigning Liability for Monetary Discovery Sanctions California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts <i>shall</i> impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. See <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney’s declarations showed attorney attempted to convince client
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	to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>See generally Ghanooni, supra</i>, 20 Cal. App. 4th at 260-261; <i>see generally Ellis v. Toshiba Am. Info. Sys.</i>, 218 Cal. App. 4th 853, 879-80 (2013); <i>see generally Deck v. Developers Inv. Co., Inc.</i>, 89 Cal. App. 5th 808, 829-832 (2023). If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. <i>See generally Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020). Here, Plaintiff does not allege, and the Court does not find, that Defendants' failure to produce a qualified PMQ to respond to Plaintiff's Notices of Deposition is in any way attributable to client misconduct. Indeed, the Court finds that the record shows unequivocally that the misconduct is attributable to Defendant's counsel's gamesmanship and failure to obey court orders. Accordingly, monetary sanctions are appropriate upon Defendants' counsel only. IV. Determining a Reasonable Sanctions Amount Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th at 790-91 (compulsion, causation, and reasonableness). "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i>, (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). "After a motion to compel discovery has been filed, further
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	expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added). Having considered the foregoing principles in light of Plaintiff’s calculation of the expenses incurred in bringing this motion, the Court finds that Defendant’s counsel is liable for the reasonable sanctions amount of \$34,801.94, owed to Plaintiff’s counsel. V. Reporting Requirements for Discovery Sanctions California Business and Professions Code Section 6068 imposes a duty upon licensed attorneys to self-report to the State Bar, in writing, and within thirty (30) days of receiving notice of a court’s order imposing “judicial sanctions against the attorney, except for sanctions for failure to make discovery or monetary sanctions of less than one thousand dollars (\$1,000).” Cal. Bus. & Prof. Code § 6068(o)(3); <i>See also</i> Cal. Bus. & Prof. Code § 6086.7 (placing the same reporting requirements upon the courts). The California State Bar Court reads these exceptions narrowly and has determined that monetary discovery sanctions of \$1,000 or more are reportable where the sanction is not for failure to make discovery. <i>See Matter of Rubin</i>, 5 Cal. State Bar Ct. Rptr. 797, 808 (2021) (finding that an attorney had an independent duty to report sanctions of \$2,335 to the State Bar for unsuccessfully opposing a motion for a protective order). Accordingly, a monetary sanction is <i>not</i> exempt from reporting merely because it arises in a discovery proceeding. California Rules of Court, Rule 10.609 states that a “judge issuing the order triggers the notification requirement under California Business and Professions Code Section 6068.7 is responsible for notifying the State Bar . . . and may direct court staff” to do so. Cal. Rules of Court, Rule 10.609(a). Here, the Court finds that the sanctions imposed by this
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		order are not attributable to Defendants' counsel's failure to make discovery; rather, they are attributable to Defendant's counsel's failure to <i>follow a court order</i> to provide discovery. <i>Compare</i> Cal. Civ. Proc. Code §§ 2025.450(a) and 2023.010(d) <i>with</i> Cal. Civ. Proc. Code § 2023.010(g). Thus, the sanctions imposed herein will trigger Defendant's counsel's duty to self-report to the State Bar. Accordingly, Plaintiff's Motion for sanctions is GRANTED and evidentiary sanctions are IMPOSED as follows: Defendants H Mart Inc. and H Mart Companies, Inc. are precluded from introducing any evidence as to liability and causation for Plaintiff's injuries. Additionally, the Court IMPOSES monetary sanctions upon Defendants' counsel of record, Armijo & Morovati LLP, in the total collective amount of \$34,801.94, due and payable to Plaintiff's counsel, Law Offices of Alexis B. Djivre, no later than sixty (60) days after receiving notice of this Order. The Court orders Clerk to give notice to the parties and to report sanctions imposed upon Defendants' counsel to the State Bar.
2.	<u>30-2026-01550158-CU-BT-CJC</u> BodEv, Inc. vs. Mandell	Before the Court is a Motion to Quash Defendant Jeffrey Mandell's ("Defendant") Deposition Subpoena for the Production of Business Records ("Motion") brought by Plaintiff BodEV, Inc. ("Plaintiff"). ROA 35 The underlying controversy stems from the termination of business dealings between current and previous officers of Plaintiff and consists of claims for declaratory judgment, breach of fiduciary duty, breach of the duty of loyalty, conversion, unfair competition, common law unfair competition, intentional interference with existing contract, intentional interference with prospective economic damage, and breach of non-disclosure agreement. ROA 2. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 1985.6, 1987.1, 2025.410, and 2017.020, quashing Defendant's deposition subpoena for

	the production of business records to non-party JP Morgan Chase Bank, N.A. (“Chase”) and granting a protective order. ROA 35, p.2. Defendant requests that the Court deny Plaintiff’s Motion and impose sanctions upon Plaintiff for the reasonable expenses incurred by Defendant in opposing Plaintiff’s Motion. ROA 109 p. 13. I. Motions to Quash A motion to quash seeks to modify a subpoena or nullify it in its entirety because it is defective or seeks impermissible information. A motion to quash provides the trial court with the opportunity to determine the validity of a subpoena and whether the information sought should be produced. <i>In re R.R.</i>, 187 Cal. App. 4th 1264, 1277 (2010). Specifically, California Code of Civil Procedure Section 1987.1 provides: [w]hen a subpoena requires the attendance of a witness or the production of . . . documents . . . the court, upon motion reasonably made by . . . [a party or a witness], or upon the court’s own motion . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms and conditions as the court shall declare, including protective orders. Cal. Civ. Proc. Code § 1987.1(a)(b). Additionally, “the court may make such other orders as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” Cal. Civ. Proc. Code § 1987.1(a). Typically, a motion to quash is filed before the time of production, but the court has the authority to consider the motion even after the date of production. <i>In re R.R., supra</i>, 187 Cal. App. 4th at 1277. If granted, the subpoena will be unenforceable because “quashing the subpoena” will make it void. <i>See Quash</i>, Merriam-Webster Law Dictionary (last updated April 3, 2026).
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Here, Defendant served their Deposition Subpoena for Production of Business Records upon Chase on April 10, 2026. ROA 33, Exh. A. The subpoena requested that Plaintiff produce the business records described in Attachment 3 of the subpoena by mailing them to the deposition officer by April 30, 2026. *Id.*

On April 20, 2026, Plaintiff served Defendant with the herein Motion by mail and e-service. ROA 35, p.8.

Plaintiff moves to quash the Defendant's subpoena on the grounds that Defendant did not serve notice of the subpoena to Chase upon Plaintiff. ROA 38, p.2. Plaintiff additionally seeks a protective order on the grounds that Plaintiff has a protected privacy interest in its confidential bank information with Chase. *Id.*

The Court notes here that Plaintiff's Declaration in Support of Plaintiff's Motion is devoid of any facts that support a finding that Plaintiff was not served with notice of Defendant's Subpoena to Chase. As this was Plaintiff's sole procedural argument for an order to quash Defendant's subpoena to Chase, the Court finds no procedural justification to grant Plaintiff's motion. Accordingly, the Court limits its treatment to the alleged privacy concerns raised by Plaintiff as justification for a protective order.

II. Privacy Concerns re: Sensitive Financial Information

The Supreme Court of California has recognized that "the right of privacy extends to one's confidential financial affairs." *Valley Bank of Nev. v. Super. Ct.*, 15 Cal. 3d 652, 656 (1975). However, an important caveat to *Valley Bank* is that it more accurately stands for the proposition that a person has a reasonable expectation that a *financial institution* with whom a party shares a confidential relationship will not divulge that person's confidential information absent *compulsion by legal process*. *Id.* at 657; *Garrabrants v. Erhart*, 98 Cal. App. 5th 486, 499 (2023).

Thus, a person does not have a reasonable expectation of

	privacy in their financial affairs in all circumstances. <i>Garrabrants, supra</i>, 98 Cal. App. 5th at 500. Discovery of confidential financial information is permitted if the information is relevant to the subject matter at issue. <i>Dompeling v. Super. Ct.</i>, 117 Cal. App. 3d 798, 808. As Plaintiff correctly points out, “[a]lthough corporations have a lesser right to privacy than human beings and are not entitled to claim a right to privacy in terms of a fundamental right, some right to privacy exists.” <i>Ameri-Medical Corp. v. Workers’ Comp. Appeals Bd.</i>, 42 Cal. App. 4th 1260, 1287–1288 (1996). To resolve an objection related to corporate privacy, “the discovery’s relevance to the subject matter of the pending dispute and whether the discovery ‘appears reasonably calculated to lead to the discovery of admissible evidence’” is balanced against the corporate right of privacy.” <i>SCC Acquisitions, Inc. v. Super. Court</i>, 243 Cal. App. 4th 741, 756 (2015). “Doubts about relevance generally are resolved in favor of permitting discovery.” <i>Id.</i> at 756. Here, Plaintiff’s separate statement merely regurgitates Defendant’s subpoena production requests and completely fails to identify the protected privacy interest implicated by the requests with any particularity. Thus, the Court is left to ponder how each request violates Plaintiff’s privacy interests. Additionally, having considered Defendant’s opposition, the Court finds that the relevance of the sought-after documents exceeds the Plaintiff corporation’s broad privacy interest in its sensitive financial information, particularly when such information is squarely at issue in the underlying controversy. III. Sanctions re: Motions to Quash California Code of Civil Procedure section 1987.2 provides that: the court <i>may</i> in its discretion award the amount of the reasonable expenses incurred in making or opposing the
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		motion [to quash], including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive. Cal. Civ. Proc. Code § 1987.2. (emphasis added). Where a court exercises its discretion to issue sanctions under Section 1987.2, “it must delineate the specific acts upon which the sanctions are awarded.” <i>First City Properties, Inc. v. MacAdam</i>, 49 Cal. App. 4th 507, 515 (1996). Here, because Plaintiff failed to provide facts to substantiate its claim that Defendant’s subpoena was procedurally invalid, and because Plaintiff failed to identify with any particularity how Defendant’s subpoena’s individual requests for production threatened Plaintiff’s protected privacy interests, the Court finds that Plaintiff moves without substantial justification. Accordingly, the Court exercises its discretion to award to Defendant the reasonable amount of expenses incurred in opposing this Motion. IV. Motions for Protective Order A protective order does not seek to nullify the subpoena; rather, it permits production of discovery but limits disclosure and use of discovered information. <i>Nativi v. Deutsche Bank Nat’l Tr. Co.</i>, 223 Cal. App. 4th 261, 318 (2014). Unlike a Motion to Quash under California Code of Civil Procedure Section 1987.2, a Motion for Protective Order under Section 2025.420 must be accompanied by a meet and confer declaration that complies with the provisions of Section 2016.040. Cal. Civ. Proc. Code § 2025.420(a). Effective January 1, 2026, a meet and confer declaration “shall state facts showing a reasonable and good faith attempt” on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a).
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	Additionally, the moving party’s declaration “shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). Here, the Court finds that Plaintiff’s Declaration in Support of their Motion (ROA 33) fails to satisfy the meet and confer requirements of California Code of Civil Procedure Section 2016.040. Accordingly, Plaintiff’s Motion for a Protective Order is procedurally invalid as well. V. Sanctions re: Motions for Protective Order California Code of Civil Procedure Section 2025.420 mandates the imposition of discovery sanctions “against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order” absent a finding that “the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code § 2025.420(h). The term “substantial justification” means “a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011)). Here, Plaintiff does not offer, and the Court does not find, any substantial justification for Plaintiff’s failure to satisfy the statutory guidelines of California Code of Civil Procedure Section 2016.040. Additionally, the Court finds no reason why the imposition of sanctions would result in injustice to Plaintiff. Consequently, sanctions are mandatory and just. VI. Determining a Reasonable Sanctions Amount Three principles guide the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 790-91 (2020) (compulsion, causation, and
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	reasonableness). “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i>, (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>Marriage of Moore, supra</i>, 102 Cal. App. 5th at 1301. Having considered these principles, the Court finds that Defendant is entitled to a reasonable sanctions award of \$2,500 for successfully opposing Plaintiff’s Motion. VII. Reporting Requirements re: Monetary Discovery Sanctions California Business and Professions Code Section 6068 imposes a duty upon licensed attorneys to self-report to the State Bar, in writing, and within thirty (30) days of receiving notice of a court’s order imposing “judicial sanctions against the attorney, <i>except for</i> sanctions for failure to make discovery or monetary sanctions of less than one thousand dollars (\$1,000).” Cal. Bus. & Prof. Code § 6068(o)(3) (emphasis added); <i>See also</i> Cal. Bus. & Prof. Code § 6086.7 (placing the same reporting requirements upon the courts). The California State Bar Court reads these exceptions narrowly and has determined that monetary discovery sanctions of \$1,000 or more are reportable where the sanction is <i>not</i> for failure to make discovery. <i>See Matter of Rubin</i>, 5 Cal. State Bar Ct. Rptr. 797, 808 (2021) (finding that an attorney had an independent duty to report sanctions of
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	\$2,335 to the State Bar for unsuccessfully opposing a motion for a protective order). Accordingly, a monetary sanction is <i>not</i> exempt from reporting merely because it arises in a discovery proceeding. California Rules of Court, Rule 10.609 states that a “judge issuing the order triggers the notification requirement under California Business and Professions Code Section 6068.7 is responsible for notifying the State Bar . . . and may direct court staff” to do so. Cal. Rules of Court, Rule 10.609(a). Here, the Court finds that the sanctions imposed upon Plaintiff for unsuccessfully making the herein Motion, without substantial justification, are not imposed for failure to make discovery. Accordingly, the sanctions amount imposed shall trigger both the Court’s and Plaintiff’s attorney’s duty to report to the State Bar. Accordingly, Plaintiff’s Motion to Quash Defendant’s Subpoena to Chase for the Production of Business Records and Motion for Protective Order are DENIED. The Court IMPOSES monetary discovery sanctions upon Plaintiff’s attorneys, Joanna Ardalan and Kurt W. Schuettinger, jointly and severally, in the total collective amount of \$2,500, due and payable to Mirsky Corporate Advisors, APC, no later than sixty (60) days after receipt of notice of this Order. The Court orders Clerk to give notice to parties and to report the imposition of the herein sanctions to the State Bar.
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